

		10. The proposed order and judgment should include the definitions of the Aggrieved Employees and the PAGA Period. 11. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. The Court further refers Plaintiff's counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff's counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. Plaintiff to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Logue vs. JHA Remediation LLC 2024-01384205	Status Conference

113	Ramos vs. Ascent Aerospace, LLC 2024-01416819	Motion to Approve PAGA Settlement Plaintiff Francisco Ramos Jr.’s Motion for Approval of PAGA Settlement is CONTINUED to October 8 at 2:00 p.m. in Department CX102 in order to give Plaintiff’s counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 8/5/2024, Plaintiff Francisco Ramos Jr. filed a class action complaint against Defendant Ascent Aerospace LLC, alleging 14 causes of action for various Labor Code violations and unfair competition. (ROA #2.) On 10/9/2024, Plaintiff filed the operative first amended complaint (FAC), adding a cause of action for PAGA penalties. (ROA #15.) Then, on 9/25/2025, Plaintiff filed a request for dismissal of his individual and class claims against Defendant without prejudice. (ROA #54.) The Court approved and granted the dismissal, entering the order on 10/3/2025. (ROA #62.) On 1/30/2026, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court’s review the PAGA Settlement Agreement and Release (“Settlement Agreement”) and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties’ proposed settlement of Plaintiff’s PAGA claims for the non-reversionary gross settlement amount (GSA) of \$100,000. The Court concludes that an attorneys’ fee award totaling \$30,000 or 30% of the GSA, constituting a 0.51 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action’s contingent nature and the results achieved. The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Therefore, the Court deducts from the requested amount \$19.45 for postage incurred on 10/5/2023 and 8/5/2024, and awards reasonable costs in the amount of \$12,590.55. Further, the Court has identified the following issues with the moving papers, which must be addressed by Plaintiff’s counsel before approval can be granted: 9. Although at ¶ 22, the Settlement provides that the allocation of the PAGA penalties between the LWDA and Aggrieved Employees will be 65% and 35% respectively, the Settlement at ¶¶ 13 and 16 provides for a 75%/25% allocation, which is inconsistent and incorrect. 10. The moving papers fail to provide the Aggrieved Employees’ estimated high and low individual recovery under the proposed settlement. 11. The Settlement Agreement includes an escalator clause. But this is a motion to have the settlement fully approved, and so a specific GSA must be approved upon the granting of this motion. At this point, the
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